
Docket No. 1749-5-13 Cncr State vs. Yaranga, Giovanna 1749-5-13 Cncr

Prosecutor:	Susan Hardin	Defendant:	Giovanna Yaranga
Motions pdg:		DOB:	11/19/1968
Bail set:		POB:	
Incarcerated:	released	Atty:	
Conditions:		Aliases:	
Case Status:		Address:	273 Shelburne Rd
Disposed			Burlington VT 05401
Next Hearing:			

Dspt	Docket No.	Ct.	Statute	F/M/O	
1	1749-5-13 Cncr	1	13 3258(b)	mis	09/06/13 Plea guilty
	SEXUAL EXPLOITATION OF A MINOR				
2	1749-5-13 Cncr	2	13 3258(b)	mis	09/06/13 Plea guilty
	SEXUAL EXPLOITATION OF A MINOR				
3	1749-5-13 Cncr	3	13 3258(b)	mis	09/06/13 Plea guilty
	SEXUAL EXPLOITATION OF A MINOR				
4	1749-5-13 Cncr	4	13 3258(b)	mis	09/06/13 Plea guilty
	SEXUAL EXPLOITATION OF A MINOR				

05/06/13 Information and Affidavit filed on 4 disputes.
 Dispute 1 for Docket No. 1749-5-13 Cncr Count 1, SEXUAL EXPLOITATION OF A MINOR, Felony, 13 V.S.A. 3258(c). Alleged offense date: 10/01/12. Arrest/citation date: 11/30/12 Chittenden Unit - Special Investigations.
 Dispute 2 for Docket No. 1749-5-13 Cncr Count 2, SEXUAL EXPLOITATION OF A MINOR, Felony, 13 V.S.A. 3258(c). Alleged offense date: 12/01/12. Arrest/citation date: 01/31/13 Chittenden Unit - Special Investigations.
 Dispute 3 for Docket No. 1749-5-13 Cncr Count 3, SEXUAL EXPLOITATION OF A MINOR, Felony, 13 V.S.A. 3258(c). Alleged offense date: 02/01/13. Arrest/citation date: 03/31/13 Chittenden Unit - Special Investigations.
 Dispute 4 for Docket No. 1749-5-13 Cncr Count 4, SEXUAL EXPLOITATION OF A MINOR, Felony, 13 V.S.A. 3258(c). Alleged offense date: 03/01/13. Arrest/citation date: 05/06/13 Chittenden Unit - Special Investigations.
 Arraignment set for 05/06/13 at 01:00 PM. Karen Burns, Victim's Advocate, entered as party/participant 3.
 Appearance entered by James W. Murdoch.
 Arraignment held by Kevin Griffin. (CDVIDEO).
 Probable Cause found by Judge Kevin Griffin on disputes 1-4.
 Copy of Affidavit and Information given to defendant. 24 hour rule waived.
 Reading of Information waived. Defendant pleads not guilty on disputes 1-4. Pre-trial discovery order issued.
 Conditions set by Kevin Griffin on dispute 1-4. Bail Amount: 0.00 set. Condition[s] 1-2,14,31-32 imposed; No.14: not to have contact with R.B. & his family or any person under ag; Other conditions: Defendant shall not go into or onto the residence of R.B. & his family or Burlington High School Surrender passport to clerk's office.
 1 document filed for party 1: Passport.

05/07/13 Status Conference set for 07/09/13 at 01:30 PM.

05/17/13 1 document filed by Attorney Susan Hardin for party 2: Supplemental affidavit of probable cause.

05/23/13 1 document filed for party : search warrant 5/7/13.

06/03/13 1 document filed for party : search warrant (5/8/13).

06/11/13 Motion to Modify Conditions of Release filed by Attorney James W. Murdoch for Defendant Giovanna Yaranga on disputes 1-4. Motion to Modify Conditions of Release given to judge.

06/12/13 Motion 1 (to Modify Conditions of Release) Other by Kevin Griffin. Set for hearing.

Review of Conditions set for 06/19/13 at 01:30 PM.

06/19/13 Review of Conditions held by Kevin Griffin. (CDVIDEO). Motion 1 (to Modify Conditions of Release) rendered moot by Kevin Griffin. Parties notified on the record.

07/09/13 Status Conference held by Brian J. Grearson. (CDVIDEO). Entry Order: Discovery in progress DA indicates that excluding depositions discovery is 95 complete defense requests 2 weeks to file motions or depositions schedule or both State does not object Court would like to start w/ a deposition deadline in 60 days then have status to check on it. Status Conference set for 09/10/13 at 02:00 PM. Status Conference scheduled for 09/10/13 cancelled. Status Conference set for 09/06/13 at 03:00 PM.

07/19/13 1 document filed for party : search warrant - 5/28/13.

09/06/13 1 document filed by Attorney Susan Hardin for party 2: Amended Information.

Charge amended to SEXUAL EXPLOITATION OF A MINOR, Misdemeanor, 13 V.S.A. 3258(b) on dispute 1.

Charge amended to SEXUAL EXPLOITATION OF A MINOR, Misdemeanor, 13 V.S.A. 3258(b) on dispute 2.

Charge amended to SEXUAL EXPLOITATION OF A MINOR, Misdemeanor, 13 V.S.A. 3258(b) on dispute 3.

Charge amended to SEXUAL EXPLOITATION OF A MINOR, Misdemeanor, 13 V.S.A. 3258(b) on dispute 4.

Change of plea held by Kevin Griffin. (CDVIDEO).

Entry Order: Deft enters guilty plea to amended information State outlines reasoning for plea agreement on the record.

Defendant pleads guilty on disputes 1-4. Plea agreement filed. Judge Kevin Griffin accepts plea after finding it to be voluntary and made with knowledge and understanding of the consequences and after a knowing waiver of constitutional rights. Plea found to have a factual basis. Adjudication of guilty entered.

Sentence on dispute 1: to serve 6 month(s) to 12 month(s) all suspended and defendant placed on probation under standard conditions and special conditions 31-34. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact Probation warrant issued expires on September 6, 2017. \$41.00 surcharge assessed. \$100.00 Special Investigative Unit surcharge assessed.

Sentence on dispute 2: to serve 6 month(s) to 12 month(s) all suspended and defendant placed on probation under standard conditions and special conditions 31-34. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact Probation warrant issued expires on September 6, 2017. cons. to 1749 ct 1. \$41.00 surcharge assessed. \$100.00 Special Investigative Unit surcharge assessed.

Sentence on dispute 3: to serve 0 to 1 year(s) all suspended and defendant placed on probation under standard conditions and special conditions 31-34. No.31: No contact with R.B. No.32 Remain away from

any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact Probation warrant issued expires on September 6, 2017. cons. to 1749 cts 1-2. \$41.00 surcharge assessed. \$100.00 Special Investigative Unit surcharge assessed.

Sentence on dispute 4: to serve 0 to 1 year(s) all suspended and defendant placed on probation under standard conditions and special conditions 31-34. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact Probation warrant issued expires on September 6, 2017. cons. to 1749 cts 1-3. \$41.00 surcharge assessed. \$100.00 Special Investigative Unit surcharge assessed.

Judgment of Guilty entered by Judge Kevin Griffin on disputes 1-4. Case closed. Order to provide SOR information.

09/09/13 Deferred payment agreement no. 132653 issued: 564.00 payments to be made. Defendant to pay fine in full by 11/06/13 or appear for a Show Cause Hearing on at.

Show Cause Hearing set for 09/19/13 at 03:30 PM. To determine if prints and photos have been completed.

09/12/13 Note: Court rec'd defts prints and photos from BPD-clerk forwards documentation to VCIC to forward to Sex Offender Registry. Show Cause Hearing scheduled for 09/19/13 cancelled.

1 document filed by Attorney James W. Murdoch for parties 1-2: Stipulated Order (release of passport).

09/17/13 Note: Judge Griffin signs Stipulated Order on 9/16 and copies sent to parties on 9/17/13.

09/20/13 Note: Defts passport is returned to her at counter. Deft signs Return of Passport form.

01/21/14 Referred to collection agency, agreement 132653.

02/27/14 Payment Order no. 132653 paid in full.

Payment Order no. 132653 paid in full.

Payment Order no. 132653 paid in full.

Payment Order no. 132653 paid in full.

07/16/14 Sentence on dispute 1 all suspended and defendant placed on probation under standard conditions and special conditions 31-35. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14 Probation warrant amended expires on September 6, 2017. Sentence on dispute 2 all suspended and defendant placed on probation under standard conditions and special conditions 31-35. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14 Probation warrant amended expires on September 6, 2017. Sentence on dispute 3 all suspended and defendant placed on probation under standard conditions and special conditions 31-35. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14 Probation warrant amended expires on September 6, 2017. Sentence on dispute 4 all suspended and defendant

placed on probation under standard conditions and special conditions 31-35. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricke from 8/8/14 to 8/29/14 Probation warrant amended expires on September 6, 2017.

- 10/16/15 Motion for Early Discharge from Probation. filed by Defendant Giovanna Yaranga on disputes 1-4. Motion for Early Discharge from Probation. given to judge.
- 10/20/15 Motion 2 (for Early Discharge from Probation.) Other by James R. Crucitti. State's response in 10 days.
- 10/21/15 2 documents filed by Attorney Susan Hardin for party 2: States objection to Discharge from; Probation.
- 10/26/15 Motion 2 (for Early Discharge from Probation.) denied by A. Gregory Rainville. Ms. Giovanna may reapply for discharge next year and the matter will be set for a hearing to consider her request at that time.
- 10/29/15 2 documents filed by Attorney James W. Murdoch for party 1: Letter from Atty Murdoch stating he; no longer represents her.
- 10/07/16 Attorney James W. Murdoch withdraws.
Motion for Early Discharge from Probation filed by Defendant Giovanna Yaranga on disputes 1-4. Motion for Early Discharge from Probation given to judge.
- 10/10/16 Judge Nancy Waples recused.
Case status changed to Disposed - Post Judgment.
Judge James R. Crucitti recused.
Motion 3 (for Early Discharge from Probation) Other by James R. Crucitti. There are no letters attached to this request as indicated in Ms. Yaranga's request for early discharge.
Motion Hearing set for 11/10/16 at 01:30 PM.
- 10/13/16 2 documents filed by Attorney Susan Hardin for party 2: States Objection to Def. Motion for Earl; y Discharge from Probation.
- 10/26/16 4 documents filed for party 1: def brought in letters to support her; letter for request for early discharge; from prob. she forgot to attach them whe; n she originally sent letter Oct 7,2016.
- 11/10/16 Motion Hearing held by Dennis R. Pearson. (CDVIDEO).
Entry Order: State indicates that they didn't receive documents filed by Deft. Court will take a brief recess and allow SA to review them.
Case recalled - the main reason for Deft wishing to be discharged from probation is so that she may return to Peru to visit family.
Deft advises that she has completed her conditions of probation.
State requests that Deft stay on probation for the entire term, which expires 9/6/17. Court will not discharge Deft from probation, but will consider amending probation conditions to make travel easier for Deft. State to submit confidentially the location of the victim and where he is attending school.
Motion 3 (for Early Discharge from Probation) taken under advisement by by Dennis R. Pearson. Parties notified on the record.
- 11/21/16 Motion 3 (for Early Discharge from Probation) denied by Dennis R. Pearson. See written entry for complete entry The motion for early discharge from probation is DENIED. Sentence on dispute 1 all suspended and defendant placed on probation under standard conditions and special conditions 31-36. No.31: No contact with R.B. No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14 No.36: Amended 11/21/16 - Standard condition I is struck Probation warrant amended expires on September 6, 2017. Sentence on dispute 2 all suspended and defendant placed on probation under standard conditions and special conditions 31-36. No.31: No contact with R.B.

No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO
No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14
No.36: Amended 11/21/16 - Standard Condition I is struck Probation warrant amended expires on September 6, 2017. Sentence on dispute 3 all suspended and defendant placed on probation under standard conditions and special conditions 31-36. No.31: No contact with R.B.
No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO
No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricken from 8/8/14 to 8/29/14
No.36: Amended 11/21/16 - Standard Condition I is struck Probation warrant amended expires on September 6, 2017. Sentence on dispute 4 all suspended and defendant placed on probation under standard conditions and special conditions 31-36. No.31: No contact with R.B.
No.32 Remain away from any school that R.B. is enrolled in No.33: Successful completion of counseling as deemed appropriate by PO
No.34: No contact with minor males without permission of PO--but contact in public or at public events is permissible i.e. incidental contact No.35: Travel condition is stricke from 8/8/14 to 8/29/14
No.36: Amended 11/21/16 - Standard Condition I is struck Probation warrant amended expires on September 6, 2017.
11/22/16 Note: amended probation warrant sent to DOC.
07/10/17 Motion for Early Discharge from Probation filed by Defendant Giovanna Yaranga on disputes 1-4. Motion for Early Discharge from Probation given to judge.
07/12/17 Motion for Early Discharge from Probation given to Judge Dennis R. Pearson.
Note: Defendant paid \$90 post-judgment filing fee.
07/19/17 Motion 4 (for Early Discharge from Probation) denied by Sadonna Delibac. Travel prohibition - Std. Condition I - was previously eliminated.
Case status changed to Disposed.